SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ECF

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Index No. 806875/21E

GLENROY RAWLINS,

Plaintiff,

DEMAND FOR BILL OF PARTICULARS

- against -

NEW YORK CITY HOUSING AUTHORITY & LUIS VILLANUEVA,

Defendant.

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PLEASE TAKE NOTICE that pursuant to sections 3041 and 3044 of the Civil Practice Law and Rules, you are hereby required to serve a verified bill of particulars upon the undersigned within twenty days after receipt of this demand, setting forth the following:

1. The address and residence of plaintiff pursuant to section 3118 of the Civil Practice Law and Rules;

2. The date and approximate time of day of the occurrence;

3. The approximate location of the occurrence in sufficient detail so as to permit accurate identification;

4. A general statement of the acts or omissions constituting the negligence claim;

5. A statement of the injuries and a description of those claimed to be permanent;

6. The length of time confined to bed and house, with dates of confinement;

7. The length of time confined to a hospital, with the name of that hospital and dates of admission and discharge;

8. The occupation of plaintiff at the time of the alleged accident and average daily, weekly or monthly earnings;

9. The name(s) and address(es) of plaintiff employer(s) at the time of the accident and length of time incapacitated from such employment;

10. The length of time totally disabled and/or partially disabled;

11. The plaintiff 's date of birth and social security number;

12. Total amounts claimed as special damages for:

(a) Physicians' services;
(b) Medical supplies;
(c) Loss of earnings;
(d) X-rays;
(e) Hospital expenses;
(f) Nurses' services; and
(g) All other items of special damages;

13. If loss of services is alleged, state how long and between what dates such loss of services will be claimed;

14. Set forth by chapter, article, section and paragraph each and every statute or ordinance, if any, which it is claimed the defendant violated;

15. If plaintiff was a student at the time of the accident, set forth the name and address of each school attended, and the dates that student failed to attend school as a result of the accident;

16. If plaintiff made application for "no-fault" benefits, set forth the name of the company to which the plaintiff made such application, the address of that company, and the policy and claim number under which the application was made; and

17. If motor vehicle property damage is involved, state:

    (a) The registration number, make, model and year of the automobile alleged to have been damaged;
    (b) The name and address of the owner of that vehicle;
    (c) An itemized statement of the property damage and cost of repair;
    (d) Period of time necessary to repair; and
    (e) If loss of use is claimed, set forth the exact nature and amount of the claim.

18. Set forth in what manner it will be claimed Plaintiff(s) sustained a "serious injury" as defined in Article 51 of the Insurance Law of the State of New York.

PLEASE TAKE FURTHER NOTICE that upon your failure to produce, identify, state and/or provide the aforesaid items at the time and place required in this request, a motion will be made for the appropriate relief to this Court.

Dated: June 3, 2021
New York, NY

LEWIS JOHS AVALLONE AVILES, LLP
Attorneys for Defendants
61 Broadway, Suite 2000
New York, New York 10006
LJAA File No. 147-1828-NY00

By: John E. Horan

TO:

H. Bruce Fischer, Esq. PC
Attorney for Plaintiff
88 Main St.
Tappan, NY 10983
212.957.3634
Mailing address:
P.O. Box 119
Tappan, NY 10983